

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN AOTEAROA NEW ZEALAND

Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in Aotearoa New Zealand, grounded in the resource-consent and Treaty system and documented campaigns

This guide uses the terms you will actually encounter (resource consent, Assessment of Environmental Effects, the Environment Court, the Treaty of Waitangi, kaitiakitanga, and so on), each defined on first use and in the Glossary. It describes the national framework; regional and district councils have their own plans and rules, so check locally. New Zealand's resource-management law is undergoing major reform — see the note below and check the current law.

A note on terms. Important terms are shown in **bold** the first time they appear, and each is defined in the **Glossary at the end** of this guide.

A note on the law changing. The **Resource Management Act 1991 (RMA)** has been the framework for most of the decisions this guide describes, and the case law is built on it. It is being **replaced**: the government released new Natural Environment and Planning Bills in December 2025, aiming to take effect around mid-2026, and has already passed a **Fast-track Approvals Act 2024**. These changes generally **reduce** public notification and participation. This guide describes the enduring levers and the RMA model, but **check the current law and get advice** — the details are moving.

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INTRODUCTION & FRAMEWORK

Why This Matters

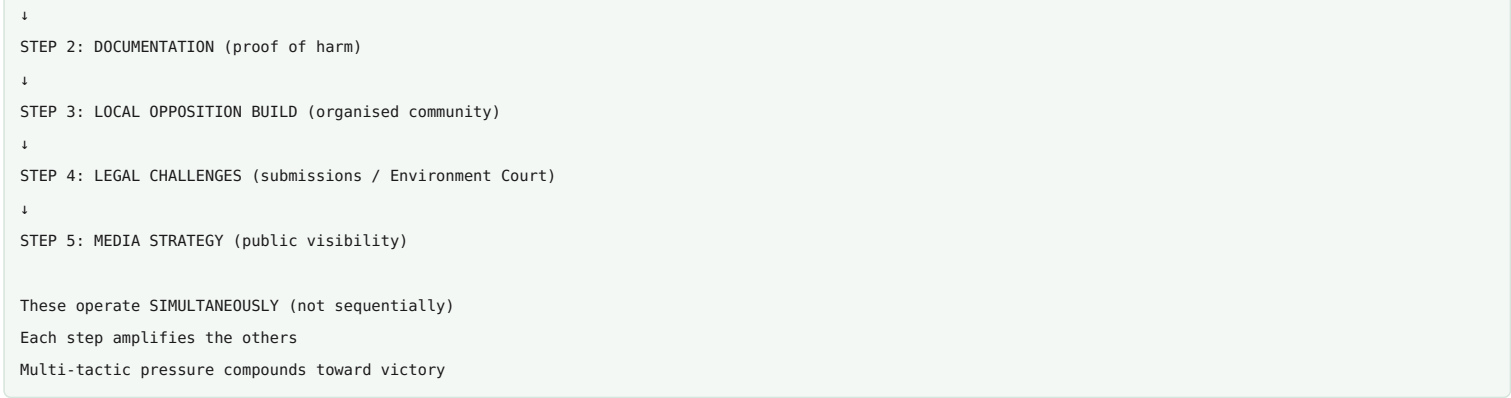
Community action directly determines project outcomes in Aotearoa New Zealand. Projects that clear every political and commercial hurdle still fall when opposition is organised, documented, and legally sharp. Off the coast of South Taranaki, a company wanted to mine up to 50 million tonnes of the seabed a year; local **iwi** (tribes), a community campaign, and environmental and fishing groups documented the harm to the marine environment and the breach of their relationship with it — and in 2021 the **Supreme Court** quashed the consents, because the decision had ignored the **precautionary approach** and the **Treaty of Waitangi**. Across the country, communities, iwi and hapū, and environmental groups using **submissions**, the **Environment Court**, and the Treaty have forced projects to be refused, halted, redesigned, or abandoned. These outcomes were not inevitable; communities made them happen.

But most communities don't know HOW to make opposition effective. They put in one submission, then give up. They assume "the council will decline it" without building public pressure, lodging strong submissions, or going to the Environment Court. They generate coverage without a strategy. They organise people and then lose them to burnout after four months.

This guide shows what actually works — in the New Zealand system.

The Strategic Framework

Successful opposition campaigns follow the same basic pattern:



Why the legal step matters so much here: New Zealand gives communities a distinctive set of levers. A **resource consent** rests on an **Assessment of Environmental Effects (AEE)**, and if the application is **notified** you can lodge a **submission**, be heard, and — this is the powerful part — appeal the decision to the **Environment Court**, which reconsiders the merits, not just the process. Decision-makers must weigh the **effects** on the environment and, where information is uncertain, courts have required a **precautionary approach** — an "environmental bottom line." The **Treaty of Waitangi (Te Tiriti o Waitangi)** runs through the system: the relationship of **tangata whenua** (the people of the land) with their lands, waters, and taonga, and their **kaitiakitanga** (guardianship), must be recognised. And in a set of world-first settlements, New Zealand has granted **legal personhood** to natural features — the **Whanganui River (Te Awa Tupua)**, **Te Urewera**, and **Taranaki Maunga** — so that the feature itself has legal standing, spoken for by appointed guardians. No New Zealand campaign should be planned without understanding these.

Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

Before you invest time, money, and emotional energy, understand this:

First, a definition. This guide calls it a **system tilted toward approval** (sometimes called *institutional bias*). It does not mean anything illegal. It means the bodies that decide on a project lean toward approving it — because councils want development and rates, because central government is pushing growth and infrastructure, or because the applicant's own consultants prepare the assessment. In New Zealand this tilt has recently been **sharpened by reform**: a **fast-track** approvals regime and a rewrite of the resource-management law that reduces public notification — a point this guide returns to.

When these factors are present, opposition becomes harder. It does not become impossible. It becomes slower and more expensive and has a lower chance of stopping a project outright — but it still routinely wins declines, conditions, redesigns, and delay. Where there is genuine misconduct — an undisclosed conflict of interest, fraud, the offences the Serious Fraud Office handles — that is a different and rarer problem, covered in Section 11.

This is covered in Sections 10 and 11. Read them before committing resources.

HOW THE SYSTEM WORKS: WHO DECIDES, AND HOW

If you've never dealt with how projects get approved, read this section first. It explains, in plain terms, who holds power over a development in Aotearoa New Zealand, how a decision gets made, why the money so often points toward "yes," and the handful of words you'll need. Every term is defined here on first use. The rest of the guide assumes you know this map.

The levels of government — and what each one controls

New Zealand has central government and local government (with no state tier).

- **Central government** — sets national direction (National Policy Statements and National Environmental Standards), and, for **nationally significant** proposals, a **board of inquiry** or the **Environmental Protection Authority (EPA)** may decide; the EPA also decides **marine consents** in the **Exclusive Economic Zone (EEZ)** offshore; and, under the new **Fast-track Approvals Act 2024**, ministers and expert panels can approve listed projects.
- **Regional councils** — regional plans and consents for taking water, discharges to water and air, and the coastal marine area.
- **Territorial authorities (district and city councils)** — district plans, land use, and subdivision.

So which body decides *your* project?

- A mine, quarry, dam, subdivision, intensive farm, or major building on land → a **resource consent** from the regional and/or district council (or a **board of inquiry**/EPA if nationally significant), based on an **AEE**.
- Offshore activity (like seabed mining) → a **marine consent** from the **EPA** under the **EEZ Act**.
- A listed major project → possibly a **Fast-track Approvals Act** approval.
- Anything affecting **tangata whenua**, a **Treaty settlement** area, or a feature with **legal personhood** (the Whanganui River, Te Urewera, Taranaki Maunga) → those rights and values are engaged.

The expert and decision bodies

- **Council planners and independent commissioners** — assess applications and decide many consents.
- **The EPA, its decision-making committees, and boards of inquiry** — for nationally significant and offshore proposals.
- **The Environment Court** — the specialist court that hears appeals on the merits.
- **The courts, the Ombudsman, the Auditor-General, and the Waitangi Tribunal** — the accountability bodies (see the overseers, below, and Section 11).

How a decision is actually made — the consent journey

For a project that may affect the environment, the developer must obtain a **resource consent** (or a **marine consent** offshore) based on an **AEE**. The process runs roughly:

1. **Application and AEE** — the developer lodges the application with the assessment of effects.
2. **Notification decision** — the council decides whether to **notify** the application publicly (anyone can submit), with limited notification (only affected persons), or not at all. **This decision is pivotal** — if it isn't notified, the public can't submit. (The current reforms **narrow** notification.)
3. **Submissions and hearing** — if notified, the public lodge **submissions**, and there is a hearing before commissioners where submitters can be heard.
4. **Decision** — the consent is **granted (with conditions) or declined**.
5. **Appeal** — the applicant or a submitter can **appeal to the Environment Court**, which reconsiders the merits.

A **weak or misleading AEE, a wrongly non-notified application, unacceptable effects, or a failure to give effect to the Treaty and tangata whenua's relationship with the place** are among the strongest grounds to stop or delay a project — and the route to the **Environment Court**.

The rulebook — the laws that decide the outcome

- **The Resource Management Act 1991 (RMA)** — the framework for resource consents (being replaced; see the note at the top).
- **The EEZ Act 2012** — offshore activity and marine consents, with a **precautionary approach** built in.
- **The Fast-track Approvals Act 2024** — a fast route for listed projects.
- **The Treaty of Waitangi / Te Tiriti o Waitangi (1840)** and **Treaty settlements** — including the **legal-personhood** settlements for the **Whanganui River (Te Awa Tupua Act 2017)**, **Te Urewera (Te Urewera Act 2014)**, and **Taranaki Maunga (2025)**.
- **The Official Information Act 1982 (OIA)** and the **Local Government Official Information and Meetings Act 1987 (LGOIMA)** — the right to official information.

Follow the money — why the system often leans toward "yes"

- **Councils** want development, rates, and jobs, so there is often pressure to approve.
- **Central government** promotes growth, housing, and infrastructure — the current reforms are explicitly framed as ending a "culture of no."
- **Developers** are often well-resourced, and the **AEE is prepared by the applicant's own consultants**, so it tends to read in the project's favour.
- Most applications that reach a decision are granted, usually with conditions.

None of this makes a decision inevitable. It explains why a decision rarely tips your way on its own — it takes organised, evidenced pressure.

The overseers — who watches the decision-makers

- **The Environment Court** and, on points of law, the **High Court, Court of Appeal, and Supreme Court** — reconsider decisions and can quash a consent (as in the South Taranaki seabed case).
- **The Ombudsman** — reviews refusals under the OIA/LGOIMA and investigates maladministration.
- **The Auditor-General**, and the **Serious Fraud Office (SFO)** — the integrity bodies (see Section 11).
- **The Waitangi Tribunal** — inquires into Crown breaches of the Treaty.

QUICK REFERENCE: SUCCESS RATES BY STEP & COMBINATION

These ranges describe the general effectiveness of each tactic drawn from documented opposition campaigns. They are patterns, not guarantees. In New Zealand, the variable most likely to push a campaign above these ranges is a well-founded challenge on a real defect — a misleading **AEE**, unacceptable **effects**, a wrongly non-notified application, or a failure to give effect to the **Treaty and tangata whenua's** relationship with the place — carried through **submissions** and the **Environment Court** (Step 4).

Individual Step Success Rates

Step	Success Rate	Timeline	Cost (NZD)	What "Success" Means
Documentation Only	5-10%	3-4 months	NZ\$40,000	Project slowed, public awareness only

Opposition Only	15-20%	6-12 months	NZ\$110,000	Public pressure, minor modifications
Legal Only	20-30%	12-24 months	NZ\$0-90,000	Slow; strong if the defect is real
Media Only	10-15%	3-6 months	NZ\$40,000	Public knows, but no action
Docs + Opposition	25-35%	12 months	NZ\$130,000	Slowed, some modifications
Docs + Legal	30-40%	12-18 months	NZ\$160,000	Stronger legal arguments
Opposition + Legal	35-45%	12-18 months	NZ\$200,000	Political pressure strengthens the case
Opposition + Media	30-40%	9-12 months	NZ\$130,000	Visibility creates political pressure
All 5 Steps Combined	60-75%	12-24 months	NZ\$220,000	Consent declined/quashed/modified or project shelved

Key insight: All five steps together = 3-4x more effective than any single step.

A note on legal cost: the Environment Court has modest filing fees, and environmental groups (such as the Environmental Defence Society and Forest & Bird), community law centres, and — for iwi and hapū — Treaty and legal-aid support take these cases, so the "Legal" figures are not a hard floor. The main cost is expert evidence, not court fees. Beware, though, that costs can be awarded in the Environment Court — get advice.

Effectiveness Visualization



One important point: a single clear legal defect — most powerfully a misleading **AEE**, unacceptable **effects** under an uncertain-information **precautionary approach**, or a failure to give effect to the **Treaty** and **tangata whenua's** relationship with the place — can lead the **Environment Court** (or a higher court) to decline or quash a consent even where the politics favour the project, because it is applying a legal standard the decision-maker cannot ignore. (A quashed consent can be reconsidered and re-granted, as in the seabed case — so an early win may need defending.)

Step Importance Ranking (When All Combined)

1. OPPOSITION BUILDING (Step 3)

25%

Why: creates political pressure, visible to decision-makers, enables other steps
2. DOCUMENTATION (Step 2)

22%

Why: provides ammunition for submissions, the court, and media; grounds opposition in facts
3. MEDIA STRATEGY (Step 5)

20%

Why: makes opposition/legal/documentation visible, creates political cost
4. LEGAL CHALLENGES (Step 4)

18%

Why: the Environment Court reconsiders the merits – and holds the Treaty, effects, and precautionary levers
5. TARGET ID (Step 1)

15%

Why: foundation – if wrong, everything fails

Real insight: a large, organised, visible community that has also lodged well-argued **submissions** and, with **tangata whenua**, asserted the Treaty and kaitiakitanga, is far more powerful than perfect documentation or a brilliant legal argument standing alone.

STEP 1: TARGET IDENTIFICATION

Time to complete: Weeks 1-4
Cost: NZ\$0
Outcome: A clear picture of what you're fighting, who decides, and when the decision is final

Core Questions You Must Answer

Before you organise a single person, answer these precisely.

Question 1: What Exactly Will Be Destroyed?

Not: "Environmental damage"
But: "The mine takes [X] hectares of habitat and discharges to the awa (river) that [number] households and the local marae depend on."

Not: "Pollution"
But: "The plant will discharge [X] to the harbour, over an area of shellfish gathering (kaimoana) that [community] relies on, already under pressure."

Not: "Community harm"
But: "The project crosses [iwi/hapū] land and cuts their relationship with [named awa/maunga/moana], a taonga, without their support."

Why this matters: specific harms are easier to document, litigate, and organise around. Vague opposition dies; specific opposition survives. Harm to **tangata whenua's** relationship with a place, to a **water body**, to the **coastal marine area**, or to a feature with **legal personhood** also opens a **specific legal front** (the Treaty; kaitiakitanga; the coastal and freshwater rules; the settlement's values).

Question 2: Who Decides?

You cannot pressure an abstraction. Identify the decision-maker precisely — it is usually one of these:

- **The regional and/or district council** — for most **resource consents**.
- **A board of inquiry or the EPA** — for nationally significant proposals, and (offshore) **marine consents**.
- **Ministers / an expert panel** — under the **Fast-track Approvals Act**.
- **Tangata whenua and, where relevant, a legal-personhood guardian** — whose rights and values are engaged.

Write it down concretely: "The regional council will decide the discharge consent, the district council the land-use consent. The project affects the [iwi] relationship with the awa, so the Treaty and kaitiakitanga are engaged. Is it being fast-tracked?"

Question 3: What Specific Action Stops It?

Not: "Stop the project"
But: "Persuade the council to decline consent, or win a decline in the Environment Court" — or, if refusal is unrealistic, "obtain strict conditions, real mitigation, and a redesign."

Not: "Protect the environment"
But: "Show the **AEE** is misleading, the **effects** unacceptable under the **precautionary approach**, the application wrongly non-notified, or the **Treaty** and kaitiakitanga not given effect, and take it to the **Environment Court**."

Why this matters: you can demand something achievable. Vague demands are easy to ignore; specific ones create measurable pressure and, if the decision is legally flawed, become the ground for a court to act.

Question 4: When Is the Decision Final?

Timeline tells you how much time you have. Map every date: when the application is lodged, the **notification** decision, the **submission** period (often around 20 working days), the hearing, the decision, and the **appeal** window to the Environment Court. Don't wait: get ready to submit the moment it's notified — and if it's non-notified when it should have been notified, get urgent advice.

Question 5: Are There Documented Financial or Policy Pressures?

- This is the tilted-system assessment question. Know it BEFORE you organise:
- Is the project being **fast-tracked**, or strongly backed by central government or the council?
 - Is the **AEE** prepared and paid for by the applicant's own consultants only?
 - Does the council depend on the project for rates, development, or jobs?
 - Is the applicant a large company with deep resources for experts, lawyers, and appeals?
 - Is the application likely to be **non-notified**, shutting out public submissions?

Why this matters: if fast-tracking, strong political backing, or applicant-controlled studies are present, opposition must overcome different barriers (Section 10). It doesn't mean opposition can't work — it means realistic expectations and, often, a focus on the **AEE**, the **effects**, the **notification** decision, and the **Treaty**, on conditions, and on the **Environment Court**, rather than a straight political refusal.

STEP 2: DOCUMENTATION — HOW TO BUILD AN UNASSAILABLE CASE

- Time to complete:** Months 1-4
- Cost:** NZ\$40,000-70,000 (NZD)
- Outcome:** Three polished reports (30+ pages total) showing specific, quantified harms
- Success Rate (Documentation Alone):** 5-10%
- Success Rate (Documentation + Opposition):** 25-35%
- Success Rate (Documentation + Opposition + Legal + Media):** 60-75%

The Three Documentation Layers

Documentation turns vague opposition ("This is bad") into undeniable evidence ("This specific harm will occur to these specific people/places at these specific costs"). Success comes from three layers working together.

LAYER 1: BASELINE CONDITIONS DOCUMENTATION

- What it is:** documentation of existing conditions BEFORE the project begins — including who lives on and uses the land and waters, and how.
- Why it matters:** developers claim "the site is low-value" or "already modified." Baseline documentation proves what — and who — was there, and it cannot be reconstructed later.
- Documented case — iwi, KASM, and the South Taranaki seabed**

A company sought consents to mine up to 50 million tonnes of the seabed a year for 35 years in the **South Taranaki Bight**, discharging processed sand back to the sea. Its backers treated the seabed as an iron-sand resource. The community made that impossible. Local **iwi** — including **Ngāti Ruanui** and **Ngā Rauru** — together with the campaign **Kiwis Against Seabed Mining (KASM)**, environmental groups, and fishing interests, documented what the seabed and the water column actually were: habitat for seabirds and marine mammals, a food-gathering area, and part of the iwi's **kaitiakitanga** relationship with the moana (sea) — and they showed the information about the effects was uncertain.

It changed the outcome. After the **EPA's** committee granted the consents, the opponents challenged them through the courts, and in 2021 the **Supreme Court** unanimously upheld the quashing of the consents — because the decision-maker had failed to apply the **precautionary approach** the law requires when information is uncertain (an "environmental bottom line"), and had failed to give proper effect to the **Treaty of Waitangi** and **tikanga**, treating the iwi's relationship with the moana as a relevant existing interest. The opponents' documented account — of the marine values, the food-gathering, and the uncertainty — was the thing the courts acted on. (Honesty matters here: the court sent the application back for fresh consideration, and the company said it still had a pathway — so the community kept fighting. A legal victory often has to be defended.)

- Why it matters for you:** the opponents' documentation — of the marine values, the kaitiakitanga relationship, and the uncertainty in the applicant's information — was decisive. Documenting existing conditions, including who uses the place and their relationship with it, and pinpointing where the applicant's information is uncertain, is the foundation of everything that follows.
- Building your own baseline (typical process).** Document existing conditions before the project starts, because a developer will claim the site is low-value and baseline cannot be reconstructed later. A workable approach: surveys across a season cycle of the project area plus reference sites; a species and habitat inventory with GPS locations, flagging anything protected or significant that the applicant's

AEE omitted; a record of who uses the place — mahinga kai (food gathering), fishing, recreation, wāhi tapu (sacred sites) — and the **tangata whenua** relationship with it; the **water bodies and coastal areas** the community depends on; and water, air, and (offshore) marine baselines, including where the information is uncertain. Typical cost is around NZ\$40,000-60,000 for an ecologist/consultant, surveys, and testing — reducible with knowledgeable community members, university researchers, and naturalists, and — for the tangata whenua dimension — led by the iwi/hapū themselves. Dated, same-spot photographs and geo-referenced maps make it credible.

LAYER 2: IMPACT ANALYSIS

What it is: detailed analysis of what specific harms will occur, based on the project description plus your baseline.

Why it matters: it shows not just "something bad" but "specifically THIS BAD in THIS WAY" — and it maps directly onto what the **AEE** and the decision-maker must properly consider.

Use the applicant's own words and the assessment rules. Powerful, documentable weak points in New Zealand assessments include:

- **A misleading or incomplete AEE.** The **AEE** must genuinely assess the project's effects, alternatives, and mitigation. A study that omits or understates effects — or relies on uncertain information — is a strong ground.
- **Uncertain information and the precautionary approach.** Where the information about effects is uncertain, the law can require the decision-maker to **favour caution and environmental protection** — as the seabed case showed. Pinpoint the uncertainty.
- **A failure to give effect to the Treaty and kaitiakitanga.** The relationship of **tangata whenua** with their lands, waters, and taonga must be recognised; a decision that ignores it is vulnerable.

Convert each of the applicant's admissions ("temporary disturbance," "minor effects") into a quantified prediction against your baseline.

Outcome (illustrative): an **AEE** found misleading, effects shown to be unacceptable under the **precautionary approach**, or the **Treaty** not given effect, can lead the **Environment Court** to decline or quash a consent — adding months or years, or stopping the project.

LAYER 3: HEALTH, CULTURAL & ECONOMIC IMPACT DOCUMENTATION

What it is: quantification of the human-health, cultural, and economic costs to the community.

Why it matters: decision-makers and the public respond to human and cultural cost. "X hectares affected" matters less than "an estimated 45 additional respiratory cases a year, and NZ\$X of health cost" — or "the mahinga kai and fishing that sustain [community], and a taonga relationship, damaged."

Method: use recognised air-quality or water modelling and the public-health literature to translate effects into health and livelihood outcomes; document the **cultural effects** (with tangata whenua, on their terms) on wāhi tapu, mahinga kai, and the relationship with the place; and attach costs — additional health cases, lost fishing and food-gathering, and total annual and lifetime cost for the affected community.

Outcome (illustrative): an independent health, cultural, and economic analysis can move a council, feed the Environment Court case, and force conditions the original design lacked.

How to Structure Your Documentation

Phase 1: Baseline Conditions (Months 1-2)

Engage an ecologist/consultant (or use knowledgeable community members, university researchers, and naturalists), with the tangata whenua dimension led by the iwi/hapū; document conditions AND use, cultural relationship, water bodies, and wāhi tapu. **Deliverable:** a 20-30 page baseline report with species/habitat inventory, a record of use and relationship, water/air/marine data, dated photographs, and geo-referenced maps.

Phase 2: Impact Analysis (Months 2-3)

Obtain the **AEE** and the application file (the OIA/LGOIMA can help); identify specific effects; test the assessment against the rules (completeness, uncertainty/precaution, notification, Treaty, coastal/freshwater). **Deliverable:** a 20-30 page impact analysis with quantified predicted effects, comparison to baseline, and the applicant's own admissions quoted back.

Phase 3: Health/Cultural/Economic Analysis (Months 3-4)

Identify affected populations; estimate health, cultural, and livelihood impacts and costs. **Deliverable:** a 15-20 page report written for the public and press.

Common Documentation Pitfalls (What Fails)

- **Waiting for perfect data.** Documented data beats perfect data that arrives after the consent — and pinpointing the applicant's *uncertainty* is itself powerful under the precautionary approach.

- **Only environmental data.** Add health, cultural, and livelihood effects — the arguments that move decision-makers, the court, and the public.
- **No independent check.** A report the council can dismiss as "activist material" is far stronger after an independent expert or a university reviews it.
- **Ignoring the applicant's own admissions.** Their **AEE** is your best source; quote it against itself. Use the OIA/LGOIMA to get it and the file.
- **Speaking for tangata whenua.** The cultural dimension must be led by the iwi/hapū themselves, on their terms — not spoken for by others.

Documentation Budget Breakdown (NZD)

Item	Cost	Notes
Ecologist / consultant (baseline + species ID)	NZ\$32,000	Protected-species and habitat survey
GPS / survey equipment	NZ\$3,000	Mapping/documentation
Water/air/marine testing	NZ\$7,000	Sampling across seasons
Independent / university expert review	NZ\$6,000	Credibility
Printing / OIA / cultural-documentation support	NZ\$4,000	Copies for decision-makers; iwi/hapū-led work
TOTAL	NZ\$52,000	Reducible with university partners and community members

STEP 3: BUILDING LOCAL OPPOSITION — HOW TO ORGANISE COMMUNITIES THAT HOLD

Time to complete: Months 2-6 (foundation), 6-12 (sustained)
Cost: ~NZ\$110,000 (NZD) for a full year
Outcome: 50-100 core people, 5-10 organisations, sustained organisation

Success Rate (Opposition Alone): 15-20%
Success Rate (Opposition + Documentation + Legal + Media): 60-75%

Critical Insight About Organising

Most opposition campaigns fail not because they can't build opposition, but because opposition burns out after 4-8 months. You need structures that prevent it.

PHASE 1: FOUNDATION (Months 1-2)

Goal: a core group of 15-20 motivated people and a clear picture of their concerns.

Step 1a: One-to-One Conversations

People don't join movements from pamphlets; they join from relationships. Identify the 15-20 people most affected or interested. **Talk to** each in person for an hour. Ask: "What's your biggest concern about this project?" Listen — don't pitch. Ask what they'd be willing to do. Each person has a different concern (land, water, fishing, health, a wāhi tapu, a way of life). Opposition organised around each shared concern is stronger than one generic message.

Step 1b: Affinity Groups by Concern

Organise small groups (3-8 people) around a shared concern, not around "opposition":

- **Land/livelihood group** — farming, fishing, tourism, displacement and mitigation
- **Water group** — the awa, harbour, coast, aquifer, discharges
- **Health group** — air quality, dust, water quality
- **Tangata whenua / cultural group** — the Treaty relationship, kaitiakitanga, wāhi tapu (led by iwi/hapū)

Each group meets regularly and works out how opposition serves *their* interest, coordinating while keeping its own framing.

Step 1c: Work With Tangata Whenua From the Start, and Set Up a Vehicle

Two things matter most. First, in Aotearoa New Zealand, working **with tangata whenua** — the relevant **iwi and hapū**, their **marae** and, where they exist, post-settlement governance entities and (for a feature with **legal personhood**) its guardians — is both right and strategically decisive; their **Treaty** relationship and **kaitiakitanga** are among the strongest legal levers, and this work must be **led by them, on their terms**, as partners rather than props. Second, an **incorporated society or charitable trust** can speak for the wider community, receive donations, and take a case; partner with established groups (such as the **Environmental Defence Society** and **Forest & Bird**) early.

PHASE 2: PUBLIC LAUNCH (Months 2-3)

Goal: announce opposition to the public, the media, and decision-makers.

Step 2a: Public Meeting (community hui)

Hold a public meeting or **hui** where people set out their concerns to themselves, to councillors, and to press. A serious, informational meeting carries weight. Typical shape: welcome (and, with tangata whenua, appropriate tikanga) → project explanation → community concerns (each person a few minutes) → expert Q&A (an ecologist, a health voice, a lawyer/planner) → next steps.

Step 2b: Opposition Materials (Factsheets)

One page. Decision-makers and neighbours won't read 30 pages; one page gets read. Structure: a headline stating the problem → quick quantified facts → the specific effect → **what you're asking for** → the evidence base → contact/resources. Print widely; distribute at markets, the library, the marae (with permission), community boards; post a digital version. Cost: ~NZ\$2,500.

Step 2c: Submissions and the Tangata Whenua Position (the decisive record)

Two things matter most here. First, turn people out to **lodge strong submissions** the moment the application is notified — and, if it is **non-notified** when it should have been notified, get urgent advice — each raising real grounds: a misleading **AEE**, unacceptable **effects**, uncertain information, a wāhi tapu or water body harmed. Second, support **tangata whenua** to put their own position on the record — their **Treaty** and **kaitiakitanga** relationship with the place — in their own words and through their own processes. Together these build a record the council and the court take seriously. Cost: ~NZ\$2,000.

Step 2d: Media Coverage at Launch

Release data + submissions + the tangata whenua position = a story. (Full press-release example is in Section 9, 9G.) Contact reporters, then send the study. Expect 1-3 local stories.

PHASE 3: COALITION EXPANSION (Months 3-6)

Goal: grow from 20 core people to 50+ core plus 5-10 organisations.

Step 3a: Organisation Outreach

Approach environmental and community organisations — the **Environmental Defence Society (EDS)**, **Forest & Bird**, **Greenpeace Aotearoa**, local residents' and ratepayers' associations, recreational and commercial fishing groups, and — as partners, led by them — the relevant **iwi and hapū** — plus universities, churches, and businesses that lose from the project. Research each; contact the right person; explain how opposition serves *their* aims; make a specific, tailored ask.

Tailored asks:

- **EDS / Forest & Bird / a lawyer:** "We need help with submissions and, if it's granted, an Environment Court appeal — can you assist?"
- **A university group:** "Would your researchers assess the marine/freshwater or health effects independently?"
- **Iwi / hapū (as partners):** "How can we support your Treaty and kaitiakitanga case, on your terms?"
- **Fishers / recreation / churches:** "This harms the waters and food we depend on — will you submit and speak?"

Step 3b: Coalition Agreements (Written)

A written agreement — who's in, how decisions are made, meeting frequency, the public message, who may speak for the coalition, conflict resolution, money, and an exit clause — prevents later conflict. Consensus is stronger but slower; voting is faster but can fracture. Respect that iwi and hapū speak for themselves.

Step 3c: Coordinated Public Work

Assign leadership by strength: environmental analysis to the NGO/university; the Treaty and cultural case to tangata whenua (as partners, led by them); livelihood to the fishing/farming groups; media to whoever has the contacts; the legal track to the law group and the incorporated society. Sequence activities so each builds momentum (coalition launch → data release → tangata whenua position → submissions).

PHASE 4: SUSTAINED PRESSURE (Months 6-12)

Goal: maintain organised opposition across a 12+ month timeline.

Step 4a: Public Demonstrations (marches / rallies)

Regular, same time and place, growing attendance — outside the council, at the site, or in the town centre. Handle logistics: any council/police notice, marshals, accessibility, and a sound system for large gatherings. Momentum matters: "50 gather" becomes "gathering grows to 500."

Step 4b: Media Campaign (Ongoing)

Monthly rhythm: week 1 a release tied to an event/data; weeks 2-3 social media 3x/week; week 4 a reporter check-in. Rotate themes (tangata whenua position → expert finding → coalition growth → rally → appeal filed).

Step 4c: Common Opposition Failure Points (How to Prevent)

Failure Point 1: Burnout (Months 4-8). Prevent it: regular (not constant) meetings; celebrate milestones; fund one part-time coordinator so volunteers don't carry logistics; schedule breaks; keep a public progress tracker. Campaigns that bring in a part-time coordinator when founders tire tend to last for years; those that don't often collapse around month six.

Failure Point 2: Coalition Conflict. Prevent it with a written agreement and decision process, a clear escalation path (discuss → mediator), an explicit exit clause, and rotating leadership. Respect that iwi and hapū decide by their own tikanga — and be alert to developers trying to split a community, or to deal separately with some to manufacture "support"; keep decisions transparent and collective.

Failure Point 3: Competing Funding. Grants with conflicting conditions can pull groups off shared work. Coordinate grants up front and agree no group commits coalition resources without a coalition decision.

Failure Point 4: No Clear Wins. Name milestones as victories (tangata whenua position lodged, 500 submissions filed, a large rally, the appeal accepted) and publicise cumulative progress.

Opposition Building Budget: Year-Long Campaign (NZD)

Item	Cost
Factsheet printing	NZ\$4,000
Website/phone/data (annual)	NZ\$3,000
Meeting / venue / hui costs	NZ\$6,000
Outreach travel	NZ\$12,000
Submission materials	NZ\$2,000
Demonstration supplies (banners, sound)	NZ\$7,000
Coalition meeting costs	NZ\$5,000
Part-time coordinator (12 months)	NZ\$55,000
Social-media / content (part-time, 3 months)	NZ\$12,000
Fundraiser/event costs	NZ\$5,000
TOTAL	NZ\$111,000

Funding the campaign. Money typically comes from four places: individual donations (local collections and online fundraisers, plus dedicated legal-cost appeals); grants from environmental and community funders (long lead times — apply early); benefit events; and in-kind support from coalition organisations (expertise, meeting space, volunteer time). An incorporated society or charitable trust can receive donations and, where eligible, grants. Aim to raise half the budget by month 6 and the rest by month 12. **Reductions:** use a volunteer coordinator, or run a shorter 6-month campaign, to cut ~NZ\$55,000; and groups such as EDS and Forest & Bird, and community law centres, may act at reduced or no cost.

STEP 4: LEGAL CHALLENGES — SUBMISSIONS, THE ENVIRONMENT COURT, AND THE TREATY

Time to complete: 3-24 months (depends on track)
Cost: NZ\$0-90,000 (NZD; submissions are free, and the Environment Court's fees are modest — the main cost is expert evidence)
Outcome: a consent declined or quashed, a project halted, conditions, or a project shelved

Representation impact:
- Experienced resource-management lawyers or a public-interest law group: 35-45% favourable-outcome likelihood
- General or less specialised representation: 25-35%
- Self-representation: 5-15%
- **A key advantage:** the **Environmental Defence Society** and **Forest & Bird** take significant cases; community law centres and legal aid can help; and iwi and hapū have Treaty and legal support. **A key caution:** the **Environment Court can award costs** — get advice on your exposure before you file.

Success Rate (Legal Only): 20-30%
Success Rate (Legal + Opposition + Media): 60-70%

New Zealand legal strategy has three tracks. One caution up front: the **RMA reform** and the **Fast-track Approvals Act 2024** are **reducing** public notification and appeal rights, so the exact route is moving — get **current advice** on your rights today.

TRACK 1: PARTICIPATION AND THE PAPER TRAIL (the front door)

Most fights are shaped here, on the record, before any appeal.

- **Lodge strong submissions.** The moment the application is **notified**, submit — specific, on time, and grounded in real **legal grounds** (a misleading AEE, unacceptable effects, uncertain information, a water body or wāhi tapu harmed) — and ask to be **heard** at the hearing.
- **Challenge a wrong notification decision.** If the council decides **not to notify** an application that should have been notified, that decision can be judicially reviewed — get urgent advice, because non-notification shuts the public out.
- **Support the tangata whenua position.** The **Treaty** and **kaitiakitanga** relationship of the iwi/hapū with the place, put on the record in their own words and processes, is among the strongest inputs.
- **Use the OIA/LGOIMA.** Request the **AEE**, the application file, the council's reports, and the correspondence under the **Official Information Act** (central government) or **LGOIMA** (councils); escalate a refusal to the **Ombudsman**. This turns a closed process into a documented one.

Why this track matters: submitting well — specific, on time, grounded in the law and the evidence — plus the information paper trail and the tangata whenua position, often does more than any amount of noise, and it builds the record you'll need for Tracks 2 and 3. (Note: generally you must have **submitted** to have a right to **appeal** — so a good submission is also your ticket to the Environment Court.)

TRACK 2: EFFECTS, THE PRECAUTIONARY APPROACH, THE TREATY, AND LEGAL PERSONHOOD (the strongest cards)

Several grounds make this powerful.

- 1. A misleading AEE or unacceptable effects.** The **AEE** must genuinely assess the effects, alternatives, and mitigation, and the decision-maker must weigh the **effects** on the environment. A study that omits or understates effects — or effects that cannot be avoided, remedied, or mitigated — is a strong ground.
- 2. Uncertain information and the precautionary approach.** Where the information about effects is uncertain, the law can require the decision-maker to **favour caution and environmental protection** — an "environmental bottom line," as the **South Taranaki seabed** case established. Pinpointing the uncertainty in the applicant's own material is a distinctively powerful move.
- 3. The Treaty of Waitangi and kaitiakitanga.** Decision-makers must give effect to the principles of the **Treaty** and recognise the relationship of **tangata whenua** with their lands, waters, and taonga; the courts have held this relationship — including its cultural and spiritual dimensions and food-gathering (mahinga kai/kaimoana) — is a relevant **existing interest**. A decision that fails to grapple with it is vulnerable.
- 4. Legal personhood.** Where a project affects a feature with **legal personhood** — the **Whanganui River (Te Awa Tupua)**, **Te Urewera**, or **Taranaki Maunga** — the feature has legal standing and appointed **guardians** who can act for it, and the settlement's **values** must be considered. This is a genuinely distinctive New Zealand lever.

TRACK 3: THE ENVIRONMENT COURT, JUDICIAL REVIEW, AND THE HIGHER COURTS

Match the tool to the goal:

- **The Environment Court** — the specialist court that hears an **appeal on the merits** (effectively a rehearing) against a consent decision; it can confirm, decline, or change the consent and its conditions. This merits reconsideration is the workhorse.
- **Judicial review in the High Court** — for a legal or process error (for example, a wrongly **non-notified** application, or a flawed **EPA** or **fast-track** decision) — the route by which the seabed consents were first quashed.
- **Appeals on points of law** — from the Environment Court or the High Court up to the **Court of Appeal** and **Supreme Court** (the seabed case's path).
- **The Waitangi Tribunal** — inquiries into Crown breaches of the Treaty (its findings are usually recommendatory, but influential).

Be realistic about two things. First, the **reforms are narrowing** notification and appeal rights, and **fast-tracked** projects have limited public participation — so get current advice on what rights apply to *your* project. Second, a quashed or declined consent can be **reconsidered and re-granted** after the defect is addressed — as in the seabed case, where the matter went back to the EPA. So an early win may need defending: keep opposition and media pressure alive alongside the case.

Legal Strategy Decision Tree

```
START: Is an application lodged? Is it notified?
├─ NOTIFIED      → Lodge strong submissions NOW + ask to be heard (Track 1). Use OIA/LGOIMA.
│
│               Support the tangata whenua position.
├─ NON-NOTIFIED → Get URGENT advice on judicial-reviewing the notification decision.
└─ FAST-TRACKED → Get advice fast – participation is limited; act early.

Q1: What is the defect?
├─ Misleading AEE / unacceptable effects → SUBMIT, then ENVIRONMENT COURT appeal on the merits.
```

- └─ Uncertain information → argue the PRECAUTIONARY APPROACH ("environmental bottom line").
- └─ Treaty / kaitiakitanga not given effect → strong ground; support the tangata whenua case.
- └─ Feature with LEGAL PERSONHOOD affected → its guardians and values are engaged.
- └─ A legal/process error (wrong non-notification, flawed EPA/fast-track decision)
 - └─ → JUDICIAL REVIEW in the High Court.
- └─ No real defect (lawful process, you just disagree) → focus on opposition + media.

Q2: Costs risk?

- └─ The Environment Court can award costs – get advice on your exposure; groups like EDS and Forest & Bird can carry or share the risk.

Q3: Budget?

- └─ NZ\$0 → Submissions yourself; partner with EDS/Forest & Bird/community law/iwi support.
- └─ NZ\$0-40k → Environment Court appeal with a lawyer + focused expert evidence.
- └─ NZ\$40-90k → Full case + expert witnesses, combined with opposition + media.

RECOMMENDED PATHS

Path A – Clear defect: strong submissions + Environment Court appeal + Treaty case + OIA file + media. Highest ceiling.

Path B – Arguable but not clear-cut: build opposition + media; submit; take advice; appeal if a defect crystallises.

Path C – No legal defect: don't appeal. Win it politically, on the record, and in the press.

Litigation Success Factors

Litigation succeeds when **combined** with the other steps:

- Litigation alone: 20-30%
- Litigation + opposition: 35-45%
- Litigation + opposition + media: 50-70%
- A clear defect — a misleading **AEE**, unacceptable **effects** under the **precautionary approach**, or a failure to give effect to the **Treaty** — can exceed these (as in the seabed case), though a defect that is later cured may let the consent be re-granted.

A court that sees a genuine legal defect, plus visible organised opposition, plus press coverage, treats the matter as serious.

What to Avoid: Legal Failures

- **Litigating instead of organising.** A lone technical point with no visible opposition reads as a niche dispute. Build opposition; litigate with it visible.
- **Not submitting (or submitting late).** Generally you must have **submitted** to appeal — a good, on-time submission is your ticket to the Environment Court.
- **Missing a non-notification.** If it isn't notified, act fast on advice — you may be shut out otherwise.
- **Weak grounds.** "This project is harmful" is an opinion, not a legal ground. "The information on marine effects is uncertain, so the decision-maker had to favour caution" is a ground a court can act on.

STEP 5: MEDIA STRATEGY — HOW PRESS COVERAGE SHIFTS OUTCOMES

Time to complete: the full 12-month campaign

Cost: ~NZ\$40,000 (NZD) for trained spokespeople + ongoing support

Outcome: regular coverage reaching a large audience, political pressure on decision-makers

Success Rate (Media Only): 10-15%

Success Rate (Media + Opposition + Documentation + Legal): 60-75%

New Zealand has a strong national and regional press, an active environmental- and Māori-affairs journalism sector, and heavy social-media use, that cover exactly these fights — and a record of that coverage shifting outcomes. The South Taranaki seabed fight drew sustained national coverage over years, which kept the political and legal pressure on.

How Journalists Actually Work

What reporters care about, in order: (1) **news** (something new happened), (2) **consequence** (someone is affected), (3) **timeliness** (it's happening now), (4) **conflict** (a real dispute), (5) **new information**. What they don't care about: your opinion, how angry you are, vague statements, or meetings with no hook.

The Newsworthiness Formula

NEWS = DATA + CONSEQUENCE + TIMELINESS + NEW INFORMATION

- **Bad:** "Residents oppose the project." (no data, no specific consequence, nothing new) → ignored.

- **Good:** "OIA documents show the AEE never assessed the discharge into the harbour where the community gathers kaimoana; 400 submissions oppose it; the hearing is next week." → covered.

The difference is roughly a 4-5x change in the likelihood of coverage.

Know the Outlets That Cover This Beat

- **Local and community media** and **regional press** — the audience that reaches your councillors.
- **National outlets** — RNZ, Stuff, the NZ Herald, Newsroom, and The Spinoff — for projects with wider significance.
- **Māori media** — Whakaata Māori / Te Ao Māori News and iwi channels — essential where tangata whenua are central, and led by them.
- **Social media** — powerful in New Zealand — plus international outlets for landmark cases.

Building Reporter Relationships (The Key)

Reporters don't ring campaigners for comment; campaigners ring reporters with tips. Identify 5-10 local, regional, and specialist reporters (environment, local-government, Māori-affairs beats). **Contact** them first: "I saw your piece on [similar story]. We've got a similar situation in [place] and I think your audience should know." Then keep the relationship warm over months — a relevant article, an OIA document, a milestone — so that when the big story lands, they already know you.

Sample Media Timeline

- Month 1: build relationships (contact five reporters)
- Month 2: first story (submissions / the tangata whenua position)
- Month 3: press event releasing the survey/OIA findings; expert available
- Month 4: coalition announcement
- Month 5: rally coverage
- Month 6: hearing/decision coverage

Real Media Dynamics (New Zealand grounding)

- **Coverage plus mobilisation shifts outcomes:** the seabed fight combined iwi leadership, community organising, the documentation of marine and cultural values, and years of litigation with sustained national coverage that kept the pressure on.
- **OIA documents make stories:** a disclosure that contradicts the applicant's claims — an AEE that ignored a discharge, a wrongly non-notified consent — is a gift to a reporter and a court.
- **Independent evidence beats the applicant's study:** independent ecological, marine, or health analysis that contradicts an optimistic AEE lets the press write "experts dispute the applicant's figures," and decision-makers take notice.

Media Measurement

Track cumulative stories and reach month over month. **Success indicators:** regular (at least monthly) coverage that carries your message and specific data, and visible decision-maker response. **Failure indicators:** no coverage for 2+ months, superficial coverage that drops your argument, or no response from decision-makers.

SECTION 8: EMAILS & LETTERS YOU CAN COPY

These are ready-to-use messages. Adapt the bracketed parts and send them. Keep them short, specific, and grounded in the law and the evidence — that is what gets read and acted on. The **OIA/LGOIMA request (8E)** and the press release (8G) are among the highest-leverage messages here.

8A. Email to a reporter (story pitch)

Subject: Story tip: [specific finding] – [the council/EPA] decides [date]

Kia ora [Reporter],

I follow your coverage of [beat / recent story]. We have something in [place] your audience should know about, and there's a clear news hook.

In one line: [OIA documents / the tangata whenua position / an independent survey] show [quantified finding – e.g. "the AEE never assessed the discharge into the harbour where the community gathers kaimoana"], and [the council / the EPA] decides on [date].

Why it's newsworthy: it's new (just obtained), specific (affects [# people / hectares / an iwi's relationship with the moana]), and time-sensitive (decision [date]).

I can share the full report and the documents and connect you with [one named expert] for an interview. Would a quick call this week work?

Ngā mihi,
[Name] – [Organisation] – [phone] – [email]

8B. Letter to the council, the EPA, or a councillor/minister

Subject: [Decline / attach strict conditions to] [project] – consent [ref]

To [the Consents Manager / the EPA / Councillor / Minister],

I am a resident of [place] writing about the [project], on which a decision (the resource/marine consent) is expected around [date].

The concern, briefly: [one or two specific grounds – e.g. "the AEE fails to assess the discharge into the harbour the community gathers kaimoana from, the information on effects is uncertain, and the iwi's kaitiakitanga relationship has not been given effect"].

I am asking you to [specific, achievable action – e.g. "decline the consent," or "require strict conditions, real mitigation, and a redesign"].

[If true:] [#] residents have submitted; the [iwi/hapū] have lodged their position; [#] organisations share the concern.

I would welcome a meeting and can share our full evidence.

Ngā mihi,
[Name], [address], [phone], [email]

8C. Submission / tangata whenua position (the decisive record)

PART A – SUBMISSION (on the notified application)

To: [the council / the EPA], re [project], consent [ref]

Submission opposing the [project].

1. Who I am: [name], [address], [interest]. I [do/do not] wish to be heard.
2. Grounds (with evidence):
 - a. [Misleading AEE] – the assessment omits [effect], understates [effect], and relies on uncertain information about [effect].
 - b. [Precautionary approach] – because the information is uncertain, the decision-maker should favour caution and environmental protection.
 - c. [Treaty / kaitiakitanga] – the relationship of [iwi/hapū] with [awa/moana/maunga] has not been given effect.
3. Decision sought: that the consent be DECLINED; alternatively, [strict conditions and a redesign].

[Name] – [contact] – Attachments: [baseline / impact / health report]

PART B – TANGATA WHENUA POSITION (led by the iwi/hapū, in their words)

[The iwi/hapū record, through their own processes, their relationship with the place, their kaitiakitanga, the wāhi tapu and mahinga kai affected, and their position on the project. This is prepared and lodged by them, on their terms – not by others.]

8D. Coalition outreach email (to an organisation)

Subject: [Organisation] + [project] – a specific ask that fits your work

Kia ora [Name],

I'm [name] with [organisation] in [place]. We're working on [project], which [one-line stake]. I'm getting in touch because this connects directly to

[organisation]'s work on [their aim].

We're not asking you to adopt our whole campaign – just one concrete thing that serves your aims: [tailored ask – e.g. "help us with submissions and, if it's granted, an Environment Court appeal," or "support the iwi's Treaty and kaitiakitanga case, on their terms," or "have your researchers assess the marine effects independently"].

If helpful, I can send a one-page brief and arrange a short call.

Ngā mihi,
[Name] – [Organisation] – [contact]

8E. Official-information request (the transparency tool)

To: [the council / the EPA / the agency]

Request under the Official Information Act 1982 [for a Government agency/EPA] /
Local Government Official Information and Meetings Act 1987 [for a council]

Please provide the following concerning [project] (ref [ref]):

1. The application, the Assessment of Environmental Effects (AEE), and any conditions.
2. The notification decision and the reasons for it, and the submissions received.
3. The council/EPA officers' reports and any peer reviews or expert advice.
4. The correspondence between [the council/EPA] and [the applicant], [dates].
5. [For offshore] the marine-consent application and the DMC/EPA material.

Please respond within the statutory timeframe. If any information is withheld, please state the section relied on; I may complain to the Ombudsman.

[Name] – [address] – [date]

8F. Legal challenge — Environment Court / judicial review (get current advice)

NOTE: Generally you must have SUBMITTED to appeal to the Environment Court. A wrong NON-NOTIFICATION or a flawed EPA/fast-track decision is challenged by JUDICIAL REVIEW in the High Court. The Environment Court can AWARD COSTS. The reforms are changing notification and appeal rights – CONFIRM YOUR RIGHTS with a resource-management lawyer (or EDS/Forest & Bird) FIRST.

[NOTICE OF APPEAL / APPLICATION – form as advised by counsel]
[Date]

Appellant/Applicant: [submitter / community society / iwi entity], [address].
Decision appealed/reviewed: [consent [ref], granted [date], by [council/EPA]].

1. Grounds:
 - Ground 1 – [the effects are unacceptable / the AEE was misleading].
 - Ground 2 – [the precautionary approach was not applied to uncertain information].
 - Ground 3 – [the Treaty and kaitiakitanga relationship was not given effect].
 - [Ground 4 – the application was wrongly non-notified (judicial review).]
2. Relief sought: that the consent be DECLINED / QUASHED / the conditions changed.

[Name / counsel] – [contact]

8G. Press release (effective)

FOR IMMEDIATE RELEASE

[HEADLINE: make it NEWS, not opinion]
[Subtitle: consequence + timeliness]

[DATELINE: Place / Date]

[LEAD – answer "why now?"]

[Local organisation] released [study / OIA documents / the tangata whenua position] today showing [specific finding] affecting [# of people / hectares / an iwi's relationship with the place].

KEY FINDINGS

- [Quantified effect with citation]
- [Quantified effect with citation]
- [Quantified effect with citation]

[DIRECT QUOTE – specific, from a credible voice, not a slogan]
"[What the finding means]," said [Name, Title].

[CONTEXT – why it matters; reference a documented case where relevant]

[DECISION POINT – create urgency]
[The council / the EPA / the Environment Court] decides on [date].

[CALL TO ACTION] To support or make a submission: [how].
For more: [contact].

CONTACT: [Name / Organisation / Phone / Email]
ATTACHMENTS: full report, OIA documents, the tangata whenua position, maps, Q&A

8H. Legal strategy decision tree

See Step 4 for the full decision tree — Tracks 1-3, submissions, the Environment Court merits appeal, judicial review, the precautionary approach, the Treaty and kaitiakitanga, legal personhood, the costs and reform cautions, and the budget branches.

SECTION 9: WHEN THE SYSTEM IS TILTED TOWARD APPROVAL (HONEST MECHANICS)

What this means. A system is **tilted toward approval** when the bodies that decide on a project lean, in practice, toward approving it — because councils want development and rates, because central government is pushing growth, or because the applicant's own consultants prepare the assessment. It rarely means anyone broke the law. In New Zealand this tilt has recently been **sharpened by reform** — a **fast-track** regime and a rewrite of the resource-management law that reduces public notification. Here is how the tilt works — and how communities win anyway.

Important Caveat

This section describes patterns from documented New Zealand dynamics and public policy — pro-development councils, applicant-funded **AEE** studies, most applications granted, and the fast-track and RMA-reform changes. It is not a statistical claim about "X% of all decisions." Read it as: "where these patterns appear, here is what happens and what it means for opposition."

What This Tilt DOES (and DOESN'T DO)

DOES: create financial and political incentive to approve (rates, development, jobs, growth targets); bias information (the **AEE** is commissioned by the applicant, and reads optimistically); advantage well-resourced developers; and — through the **fast-track** regime and the RMA rewrite — reduce public notification and participation.
DOESN'T: guarantee approval; make opposition impossible; remove the **effects** test or the **precautionary approach**; remove the **Treaty** and **kaitiakitanga** obligations or **legal personhood**; or prevent declines, conditions, and delay.

The reforms, specifically. The **Fast-track Approvals Act 2024** lets ministers and expert panels approve listed projects with limited public input, and the government's **RMA replacement** (the Natural Environment and Planning Bills) is designed to remove a large share of consents and to **narrow public notification**. The practical lesson: participation rights are being reduced, so act **early**, lead with the cleanest ground (unacceptable effects, uncertain information and precaution, the Treaty), and get **current advice** on what rights apply to your project.

Analogy: a tilted system is like playing on a pitch sloped against you. It makes winning harder, not impossible — so your strategy has to be sharper and more visible, your legal grounds cleaner, and your information paper trail solid.

Assessment Framework — Determine Your Situation

GREEN FLAG (low tilt): an ordinary, **notified** consent with genuine scrutiny; not fast-tracked; a clear legal defect; tangata whenua relationship or a documented water body engaged. → 65-75% with all 5 steps. Proceed with standard opposition.

YELLOW FLAG (moderate tilt): a pro-development council and an applicant-funded **AEE**, but the application is notified, independent

evidence is possible, and a legal ground (effects, precaution, Treaty) is arguable. → 40-45% with all 5 steps; often win conditions and delay even if not a decline. Proceed; prioritise the effects and Treaty grounds.

RED FLAG (high tilt): a **fast-tracked** project, applicant-only studies, heavy political backing, and limited notification. → 25-30% to stop; 50-60% to modify/delay. Decide whether delay/conditions justify the investment; lead with the cleanest ground; build power and a record for the next round.

Direct Action and Safety: Factual Information (Descriptive, Not Prescriptive)

When submission and legal routes are exhausted, some New Zealand communities have used non-violent direct action — marches, occupations, and blockades. This is descriptive of what has occurred, not guidance.

On safety, New Zealand is, by international standards, a relatively safe place to organise — it consistently ranks among the least corrupt and most rights-respecting countries, and violence against environmental campaigners is rare. The real risks here are usually different: **costs** (the Environment Court can award them against you — get advice), the occasional **defamation or SLAPP-type civil claim** (see Section 11), the drain of a long fight, and the **narrowing of participation rights** under the reforms. Still, take the ordinary precautions: keep actions non-violent and lawful (arrest for trespass or obstruction is a real possibility); don't act alone; line up **legal support** in advance; keep decisions transparent and collective so a developer cannot split the community or deal separately to manufacture "support"; and respect that iwi and hapū make their own decisions by their own tikanga. Direct action has produced delay and attention in documented cases, but on its own rarely stops a project permanently; combined with documentation, the Treaty case, the Environment Court, and media, it is more consequential.

Honest Assessment

Where the system is tilted, opposition using submission and legal methods has lower odds of an outright stop — but still reliably wins declines or conditions, forces delay, imposes political cost, builds durable community power, and creates a record for the courts. And New Zealand offers genuine equalisers: the **Environment Court's** merits reconsideration; the **effects** test and the **precautionary approach**; the **Treaty, kaitiakitanga**, and **legal personhood**; and an unusually effective **official-information** regime. Neither scenario makes opposition futile.

SECTION 10: WHEN IT'S ACTUAL CORRUPTION (AND HOW TO EXPOSE IT)

Section 9 covered a system **tilted toward approval** — pressures that are lawful. This section covers something narrower and more serious: **actual corruption** — the unlawful or unethical use of a public position for private benefit, or improper influence over a decision.

Context matters here. New Zealand consistently ranks among the **least corrupt countries in the world**, and grand corruption of the kind seen elsewhere is genuinely rare. That is good news — but it can breed complacency, and it does not mean misconduct never happens. What is more realistic here, especially at the local-government level, is **undisclosed conflicts of interest**, the **revolving door**, and improper influence — and the country's strong integrity bodies and its effective **official-information** law make these unusually exposable when they do occur.

What counts as corruption (a spectrum from illegal to merely unethical)

- **Bribery and corruption offences** (under the Crimes Act) — money or favours in exchange for a decision, or an official using their position for private gain; **fraud** (the domain of the **Serious Fraud Office**).
- **Undisclosed conflicts of interest** — a councillor or decision-maker with an interest (land near the site, a stake in the applicant, a family tie) who does not declare it and step aside; this is the most realistic risk in the consent context.
- **The revolving door** — officials and the applicant's staff or consultants moving between each other.
- **Improper gifts, hospitality, or donations** flowing from a developer to decision-makers (councillors' gift and donation registers are checkable).
- **Manipulated assessments** — an **AEE** or peer review skewed or misrepresented.
- **Insider dealing** — acquiring affected land using non-public knowledge of a coming consent or plan change.

Red flags to watch for

- A consent granted despite strong officer or community objection, with thin or shifting reasons.
- A councillor or decision-maker who did not declare an interest or step aside.
- Sudden reversals, rushed timelines, or an application quietly **non-notified**.
- Gifts, hospitality, or donations flowing from the applicant to decision-makers (check the registers).
- A decision-maker — or a relative — owning affected land or an interest in the applicant.
- The same small circle of consultants and officials recurring across consents.
- OIA/LGOIMA requests met with delay or heavy withholding.

How to document and investigate it (follow the money)

- **OIA/LGOIMA requests** for correspondence, reports, minutes, and the file — an unusually powerful tool here; escalate refusals to the **Ombudsman**.
- **Councillors' interest, gift, and donation registers**, and **electoral-donation returns**.
- **Company and land records** (the Companies Register and land records) — who owns the affected land and who profits.
- **The Auditor-General's reports** on the council or entity.
- **Minutes and officer reports** — compare the decision to the technical recommendation and the declared interests.
- **Build a timeline:** interest or donation → meeting, gift, or contract → decision. Misconduct is usually shown by **pattern and timing**, not a confession.

The legal lever: a biased or tainted decision can be set aside

Two features make this powerful. First, a decision made with an **undeclared conflict of interest** or actual bias can be **judicially reviewed and set aside** as unlawful — you do not need a criminal conviction. Second, fraud and corruption offences can be pursued by the **Serious Fraud Office** and the police. So documenting a conflict or a tainted process can be both a **ground to undo the decision** and a matter for the integrity bodies.

Where to report it

- The **Auditor-General** (Controller and Auditor-General) — for concerns about a public entity's spending, conduct, or conflicts.
- The **Ombudsman** — for maladministration and OIA/LGOIMA failures.
- The **Serious Fraud Office (SFO)** — for serious or complex fraud and corruption.
- The **police**, and (for a councillor's conduct) the council's code-of-conduct process.
- **Investigative outlets** (such as RNZ, Newsroom, and Stuff) — in parallel with the official channels.

Strategy: exposing a tainted process can beat a project

A credible, documented story of a conflict or tainted process does several things at once: it triggers scrutiny or an inquiry; it can get the decision set aside; it flips coverage from "local dispute" to "accountability story"; it splits the political support behind the project; and it damages the developer's standing. **Exposing a tainted process is often more powerful than arguing inside it.**

Do this responsibly

- **Stick to documented facts.** Publish the records and the timeline and let readers draw conclusions; frame anything unproven as a question, not an accusation.
- **Mind defamation.** New Zealand has civil **defamation** law, and SLAPP-type suits are used to deter critics; accusing a named person of wrongdoing you cannot prove is legally risky. Work with a lawyer and an experienced journalist before publishing allegations.
- **Report through the Auditor-General / Ombudsman / SFO and the courts in parallel** with any media, so there is a formal record and an inquiry can follow.
- **Protect whistleblowers.** The **Protected Disclosures (Protection of Whistleblowers) Act** gives some protection; keep identities confidential.
- **Don't cry "corruption" without evidence.** In a low-corruption country especially, calling ordinary, lawful bias (Section 9) "corruption" destroys your credibility and can expose you to a defamation claim. Keep the two separate — which is exactly why they are separate sections here.

INTEGRATION: HOW ALL FIVE STEPS WORK TOGETHER

Realistic 12-Month Campaign Timeline

Months 1-2 — Foundation + Documentation: identify the target and decision-maker (Step 1); begin baseline surveys, and — led by the iwi/hapū — the cultural relationship, water bodies, and use (Step 2); convene the community and work with tangata whenua and form or partner with a society/trust (Step 3); file first **OIA/LGOIMA** requests, prepare to submit, and make first reporter contacts (Steps 4-5). *Outcome:* structure forming, the record and paper trail beginning.

Months 2-3 — Public Launch: baseline complete; public hui + **submissions** + the **tangata whenua position** (Steps 3-4); media event (Step 5). *Outcome:* opposition visible, submissions and position on the record, 3-5 stories.

Months 3-4 — Coalition + Impact Analysis: complete impact analysis testing the **AEE** and pinpointing uncertainty (Step 2); expand the coalition and bring in a law group and (as partners) the iwi/hapū (Step 3); prepare the **appeal / review** grounds — with current advice on rights (Step 4); data-release press event (Step 5). *Outcome:* broad coalition, legal grounds identified, coverage expanding.

Months 4-6 — Expansion + Health/Cultural Data: health/cultural/economic report (Step 2); sustained rallies (Step 3); the consent decision (Step 4); expert press events (Step 5). *Outcome:* possible decline or strict conditions, quantified effects, regional media.

Months 6-9 — Escalation + Appeal: rallies escalating (Step 3); file the **Environment Court appeal** (or **judicial review**) (Step 4);

ongoing monthly media (Step 5). *Outcome*: sustained pressure, case live.

Months 9-12 — Peak Pressure + Positioning: maintain opposition (Step 3); hearing / positioning, and watch for a **re-granted consent** after any quashing (Step 4); media momentum (Step 5). *Outcome*: consent + opposition + media + law compound; decline, conditions, or the project shelved.

Key Principles (What Separates Winning Campaigns from Losing Ones)

1. **Specificity** — "the AEE never assessed the discharge into the harbour the community gathers kaimoana from," not "we oppose the project."
2. **Multi-tactic pressure** — submissions + tangata whenua position + opposition + media + Environment Court, together.
3. **Long-term organising** — sustain 12+ months; prevent burnout.
4. **Documentation first** — build the evidence (including use, the cultural relationship, and the applicant's uncertainty), then submit and litigate on it.
5. **Coalition building** — 5-10 diverse groups; work with tangata whenua as partners, led by them, and guard against co-option.
6. **Use the Treaty, kaitiakitanga, the precautionary approach, and legal personhood** — the Treaty relationship, the environmental bottom line, and the personhood settlements are distinctively strong New Zealand levers.
7. **Submit, and act early** — you generally must submit to appeal, and the reforms are narrowing rights; move fast and get current advice.
8. **Realistic expectations** — expect conditions/modifications/delay; a decline or quashing is the bonus; expect fast-tracking and possible re-granting.
9. **Persistence** — plan for 12-24 months, keep momentum, and mind the costs risk.

Warning Signs — Act Early

Watch for these and respond fast: attendance declining around months 4-5 (burnout); coalition members leaving or being co-opted; no media coverage for 2-3 months; the case stalling or a consent re-granted after a quashing; fundraising below half your target by month 6; a core organiser leaving without a successor; an application quietly **non-notified**; or someone new pushing unlawful or reckless tactics. Each has a fix earlier in this guide — catch it early and the campaign holds.

FINAL ASSESSMENT: OUTCOMES & WHEN TO REASSESS

Real Outcomes: What Winning Looks Like

- **Consent declined / project shelved** (rarer): usually needs overwhelming opposition + a strong effects or Treaty case + heavy media + lower tilt. The seabed case (consents quashed by the Supreme Court) shows it happens — and also shows a win can be re-fought.
- **Consent modified** (most common victory): strict conditions, genuine mitigation and monitoring, buffers, cultural conditions, redesign — often via the council or the Environment Court.
- **Delay / attrition**: tied up for years while the case runs; costs mount and financiers lose confidence; the developer sometimes walks away.
- **Defeat**: the project proceeds (sometimes after a re-granted or fast-tracked consent). Focus then shifts to enforcing conditions and monitoring compliance, and the next opening.

Decision Point: Continue, Modify, or Reassess

Continue if the legal grounds are live, the Treaty and information record is strong, opposition is holding or growing, media is at least monthly, the coalition is stable, and the costs risk is managed.

Modify if attendance is falling, coverage has dropped for 2+ months, coalition members are leaving, the legal position has weakened, or you discover the system is more tilted (or more fast-tracked) than assessed.

Reassess if, after ~12 months (and perhaps an Environment Court appeal) submission and legal options are exhausted, the decision looks settled despite real effort, the community is exhausted, the costs exposure is too high, or resources are gone. Ask: has opposition already won partial victory (conditions, mitigation, delay)? Would more effort win more, or just prolong the fight? Should energy shift to enforcing conditions, to the next project, or to the reform debate itself?

The Bottom Line

Opposition work can stop or significantly modify destructive projects in Aotearoa New Zealand — even where development pressure, growth targets, and now a fast-track regime point toward approval. Opposition creates multiple, compounding forms of pressure: on the record, politically, in the press, and in the courts. Where the system is tilted, an outright stop is less likely, but opposition still delivers declines, conditions, mitigation, delay, and durable power.

And New Zealand offers genuine equalisers: the **Environment Court**, which reconsiders the merits and can decline or quash a consent — as with the **South Taranaki seabed**; the **effects** test and the **precautionary approach** — the "environmental bottom line" when information is uncertain; the **Treaty of Waitangi, kaitiakitanga**, and the world-first **legal personhood** of the Whanganui River, Te

Urewera, and Taranaki Maunga; and an unusually effective **official-information** regime. When a project truly cannot lawfully proceed, a court can decline or quash it — remembering that such a win must then be defended.

Know your situation. Assess how tilted the system is — and whether it's being fast-tracked — honestly, and get current advice on your rights as the law changes. Watch for genuine conflicts of interest and refer them to the integrity bodies. Work with tangata whenua as partners, on their terms. Choose your strategy accordingly. Then organise — with eyes open to both the possibilities and the barriers.

RESOURCES (verified)

Legal help:

- The **Environmental Defence Society (EDS)** — *eds.org.nz* — public-interest environmental law and litigation.
- **Forest & Bird** — *forestandbird.org.nz* — advocacy and litigation on nature.
- **Community law centres**, legal aid, and — for iwi and hapū — Treaty and Māori legal support.

The decision and the challenge:

- The **resource consent** via the regional and district councils; the **marine consent** and nationally significant proposals via the **Environmental Protection Authority (EPA)** — *epa.govt.nz*.
- The **Environment Court** (merits appeals); **judicial review** in the High Court; appeals on law to the **Court of Appeal** and **Supreme Court**.
- The **Waitangi Tribunal** — for Crown breaches of the Treaty.

Transparency: request official information under the **Official Information Act 1982** (government/EPA) or **LGOIMA 1987** (councils); complain to the **Ombudsman** (*ombudsman.parliament.nz*) if refused.

Integrity and anti-corruption: the **Controller and Auditor-General** (*oag.parliament.nz*); the **Ombudsman**; the **Serious Fraud Office (SFO)** (*sfo.govt.nz*); and councils' codes of conduct and interest registers.

Environmental and accountability media: **RNZ**; **Stuff**; the **NZ Herald**; **Newsroom**; **The Spinoff**; **Whakaata Māori / Te Ao Māori News**; and local and community media.

Nothing here is legal advice. New Zealand's resource-management law is being replaced and the fast-track regime is new, so notification, appeal, and cost rules are changing — get current advice from a resource-management lawyer or a group such as EDS before relying on this.

GLOSSARY

Terms are listed alphabetically. Words shown in **bold** in the guide are the ones defined here. (Te reo Māori terms are given with their common meanings in this context.)

- **AEE (Assessment of Environmental Effects):** the assessment of a project's environmental effects that must accompany a resource-consent application, prepared by the applicant.
- **Board of inquiry:** a body that can decide nationally significant proposals instead of a council.
- **Coastal marine area:** the foreshore, seabed, and coastal waters, managed under the resource-management system.
- **EEZ Act (Exclusive Economic Zone and Continental Shelf (Environmental Effects) Act 2012):** the law governing offshore activity and marine consents, with a built-in precautionary approach — the law in the South Taranaki seabed case.
- **Environment Court:** the specialist court that hears appeals on the merits of resource-consent decisions and can decline, confirm, or change a consent.
- **EPA (Environmental Protection Authority):** the national body that decides marine consents and administers nationally significant and fast-track processes.
- **Fast-track Approvals Act 2024:** a law allowing ministers and expert panels to approve listed projects with limited public participation.
- **Hapū / iwi:** a sub-tribe / tribe — the Māori communities whose relationship with a place engages the Treaty and kaitiakitanga.
- **Hui:** a meeting or gathering.
- **Judicial review:** a High Court challenge to the lawfulness of a decision (for example, a wrongful non-notification).
- **Kaimoana / mahinga kai:** seafood / food-gathering places and practices — relevant "existing interests" the courts recognise.
- **Kaitiakitanga:** the guardianship and stewardship relationship of tangata whenua with the natural world.
- **Legal personhood:** the status, granted by settlement legislation, that makes a natural feature (the Whanganui River / Te Awa Tupua, Te Urewera, Taranaki Maunga) a legal person with standing, spoken for by appointed guardians.
- **LGOIMA:** the Local Government Official Information and Meetings Act 1987 — the councils' official-information law.
- **Marae:** the communal meeting grounds central to Māori community life.
- **Marine consent:** the consent required for activity in the EEZ, decided by the EPA under the EEZ Act.
- **Notification:** the council's decision on whether an application is publicly notified (anyone can submit), limited-notified, or non-notified (no public submissions) — pivotal, and being narrowed by reform.
- **OIA (Official Information Act 1982):** central government's official-information law.
- **Precautionary approach:** the requirement, where information about effects is uncertain, to favour caution and environmental protection — an "environmental bottom line."

- **Resource consent:** the permission a project needs under the RMA, granted (with conditions) or declined by a council on the basis of the AEE.
- **RMA (Resource Management Act 1991):** the framework resource-management statute — being replaced (see the note at the top of this guide).
- **Submission:** a person's formal written response to a notified application, which also generally secures the right to be heard and to appeal.
- **A system tilted toward approval:** the situation where the bodies deciding on a project lean toward approving it — because councils want development, because central government is pushing growth, or because the applicant's own consultants write the assessment — usually without anyone breaking the law.
- **Tangata whenua:** the people of the land — the iwi and hapū with mana over a place.
- **Taonga:** a treasure — a valued resource, place, or thing (including rivers, harbours, and species).
- **Te Awa Tupua:** the Whanganui River as recognised in law — an indivisible living whole with the rights of a legal person, under the Te Awa Tupua Act 2017.
- **Tikanga:** Māori law, custom, and correct practice.
- **Treaty of Waitangi (Te Tiriti o Waitangi):** the 1840 founding agreement between the Crown and Māori, whose principles decision-makers must give effect to.
- **Wāhi tapu:** a sacred or spiritually significant place.
- **Waitangi Tribunal:** the standing commission of inquiry into Crown breaches of the Treaty.